

Court No. - 21

Case :- WRIT - C No. - 33299 of 2024

Petitioner :- Rahul

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And
Another

Counsel for Petitioner :- Ashwani Kumar Mishra, Sant Kumar
Mishra

Counsel for Respondent :- Alok Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikas Budhwar, J.

1. Counsel for the respondent-Electricity Department is granted
time to obtain instructions in the matter.

2. Put up as fresh on 12.11.2024.

Order Date :- 18.10.2024

CS/-

(Vikas Budhwar, J.)

(Manoj Kumar Gupta, J.)

Court No. - 29

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Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Another

Counsel for Petitioner :- Ashwani Kumar Mishra, Sant Kumar Mishra

Counsel for Respondent :- Alok Mishra

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard Sri Ashwani Kumar Mishra, learned counsel for the petitioner and Sri Alok Mishra, learned counsel appearing for the respondent nos. 1 and 2, the Dakshinanchal Vidyut Vitran Nigam Limited, Gailana Road Agra through its Managing Director and the Executive Engineer, Electricity Distribution Division-IV, Sadabad, Hathras, respectively.

2. The present petition has been filed primarily seeking quashing of the Recovery Certificate dated 27.05.2023 issued by the respondent No. 2, the Executive Engineer, Electricity Distribution Division-IV, Sadabad. Further, the petitioner, by way of the present petition, has prayed for a direction to the respondent authority, restraining them from recovering any sum from the petitioner pursuant to the aforesaid recovery certificate.

3. Pursuant to the order dated 18.10.2024, Sri Alok Mishra, learned counsel appearing for the respondent Nos. 1 and 2, has produced before this Court a copy of the instructions dated 26.11.2024.

4. Having heard the counsel for the parties, gone through the petition and perused the instructions, without recording observation, we find that the facts as stated in the instructions are hazy.

5. Learned counsel for the respondent-Corporation submits that the petitioner may be granted liberty to file a fresh complaint under

Clause 6.5 of the U.P. Electricity Supply Code, 2005 along with the relevant documents so that the grievance of the petitioner may be considered by the respondent No. 2 after affording an opportunity of hearing to the petitioner and a detailed reasoned order may be passed by the respondent No. 2 thereon as per time frame fixed under the aforesaid provision. He submits that for this purpose the petitioner may file the complaint within a time-bound period.

6. Learned counsel for the petitioner submits that the petitioner shall avail the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, within a period of fifteen days from today, by filing a fresh and detailed complaint along with all relevant documents before the respondent No. 2, the Executive Engineer, Electricity Distribution Division-IV, Sadabad, Hathras.

7. Having regard to the aforesaid, It is expected that in the event such a complaint is filed by the petitioner fulfilling all requisites, the same shall be considered by the respondent No. 2, on its own merits, and as per time-frame fixed by the Clause 6.5 of the Code 2005.

8. The present petition is **disposed of**.

9. However, in the interest of justice, as agreed by the counsel for the respondent-Corporation, it is provided that for a period of one month or till disposal of the complaint which shall be filed by the petitioner, whichever is earlier, **no recovery shall be made from the petitioner nor any coercive measure shall be adopted against the petitioner** pursuant to the impugned Recovery Certificate dated 27.05.2023.

Order Date :- 27.11.2024/Arun K. Singh